

02:00 PM **LINE 7**

25-CIV-00670

ARNETTA BROWN VS. BURLINGTON COAT FACTORY OF TEXAS, INC.

ARNETTA BROWN
BURLINGTON STORES INC.

ARTHUR C. LIPTON
KEVIN J. GRAMLING

Plaintiff Arnetta Brown's Motion for Trial Preference

TENTATIVE RULING:

Plaintiff Arnetta Brown's motion for trial preference is **GRANTED**. The parties are ordered to appear, either in person or by Zoom, at a trial setting conference in Department 28 on July 29, 2026 at 9:00 a.m.

Defendant's objections to Dr. Brode's declaration are **OVERRULED**. Defendant has not challenged Dr. Brode's qualifications to render a medical opinion and although the declaration is ambiguous as to which "condition," i.e., COPD or arthritis in both knees, has resulted in "fatigue, pain, cognitive decline, and physical weakness," defendant has not shown that plaintiff does not have these symptoms or that COPD is not a progressive disease.

Defendant's objections to Ms. Brown's declaration are **OVERRULED** as to her statements regarding her symptoms. The objections are **SUSTAINED** to the extent that Ms. Brown purports to relate any symptoms to the incident.

A party to a civil action who is over 70 years of age may petition for trial preference, "which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation." (Code Civ. Proc., § 36, subd. (a).)

The court finds that Ms. Brown, the sole plaintiff in this action, "has a substantial interest in the action as a whole."

Ms. Brown is 80 years old. Her physician, Dr. Erica C. Brode, M.D., states that plaintiff suffers from chronic obstructive pulmonary disease, a progressive disease; fatigue, pain, cognitive decline, and physical weakness; severe arthritis in both knees; and in Dr. Brode's medical opinion, Ms. Brown's health and ability to meaningfully participate in this lawsuit are expected to deteriorate further. (Declaration of Dr. Erica C. Brode, M.D., ¶¶ 5-9; see also Declaration of Arnetta Brown, ¶¶ 5-12.) Based on the unrefuted evidence submitted, the court finds that Ms. Brown's health is such that a preference is necessary to prevent prejudicing her interest in the litigation.

July 15, 2026 LAW AND MOTION CALENDAR
JUDGE NICOLE S. HEALY, DEPARTMENT 28

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

July 15, 2026 LAW AND MOTION CALENDAR
JUDGE NICOLE S. HEALY, DEPARTMENT 28

02:00 PM **LINE 8**

25-CIV-01680

NEWTEK SOLUTIONS, INC. VS. SHANE MCBRIDE, ET AL.

NEWTEK SOLUTIONS, INC.
SHANE MCBRIDE

ANDREW C. MCCLELLAND
PRO SE

Order to Show Cause Hearing

TENTATIVE RULING:

This matter is continued to July 29, 2026 at 9:00 a.m.
